

Nandu Sharma v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 17.11.2023 · 2023:AHC:218517-DB · Writ-C No. 33981 of 2023
· **Writ disposed; representation left to clause 6.8; OTS if desired**

HEADNOTE

Where the only prayer was that a representation against a provisional assessment for alleged theft of electricity be decided under clause 6.8 of the U.P. Electricity Supply Code, 2005, the Division Bench disposed of the writ, observing that the Electricity Department would so decide it, and provided that the petitioner may also take the benefit of the One Time Settlement scheme dated 4.11.2023 if he so desires.

FACTUAL SUMMARY

The petitioner, Nandu Sharma, was served on 31 May 2022 with a provisional assessment raised on the allegation that he had committed theft of electricity. On 11 May 2023 he made a representation to the Electricity Department. His writ sought only that this representation be decided under clause 6.8 of the U.P. Electricity Supply Code, 2005. When the petition was taken up, counsel for the Department stated that a One Time Settlement scheme had been notified on 4 November 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Representation against theft provisional assessment

HOLDING

The writ, whose only prayer was that the petitioner's representation against a provisional assessment dated 31.5.2022 for alleged theft of electricity be decided under clause 6.8 of the U.P. Electricity Supply Code, 2005, was disposed of on the view that the Electricity Department would decide that representation under clause 6.8. The Court further provided that the petitioner be given the benefit of the One Time Settlement scheme dated 4.11.2023 if he so desires. The assessment was neither quashed nor affirmed. ¶ 2-5

PRINCIPLE TAGS

pending-objection-to-theft-assessment-6.8 The representation dated 11.5.2023 against the theft provisional assessment dated 31.5.2022 was left with the Electricity Department to be decided under clause 6.8. ¶ 2-4

assessment-6.8-alternate-remedy The Division Bench did not decide the provisional assessment. It disposed of the writ so the representation would be dealt with under clause 6.8, which was the only relief sought. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 31.5.2022 AND OF THE REPRESENTATION DATED 11.5.2023

Left to the Electricity Department under clause 6.8. ¶ 2-5

NOT DECIDED — WHETHER THE PETITIONER AVAILS THE ONE TIME SETTLEMENT SCHEME DATED 4.11.2023

The benefit was made available only if the petitioner so desires. The Court did not fix the scheme's terms or compel acceptance. ¶ 4

